



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

400 Seventh Street, S.W.
Washington, D.C. 20590

NOV 30 2000

DOT-E 10911
(FOURTH REVISION)

EXPIRATION DATE: October 31, 2002

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: The Pallet Reefer Company
Houma, LA
2. PURPOSE AND LIMITATION: This exemption authorizes the manufacture, mark and sale of a non-DOT specification shipping container (pallet reefer) containing four DOT specification 3AL cylinders from which a controlled flow of gas is released during transportation and provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.24(b).
5. BASIS: This exemption is based on the application of The Pallet Reefer Company dated November 29, 2000, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Carbon Dioxide	2.2	UN1013	n/a

7. SAFETY CONTROL MEASURES:
Packaging prescribed in a non-DOT specification refrigerated shipping container (pallet reefer) designed to transport non-hazardous materials. The Pallet Reefer is constructed of a steel base and insulated fiberglass panels. Mounted inside the Pallet Reefer are four DOT specification 3AL 1800 cylinders charged with carbon dioxide, liquefied gas

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in accordance with the filling requirements of § 173.304. The carbon dioxide is released into the cargo space of the Pallet Reefer in a controlled venting process for the purpose of cooling the space. The carbon dioxide is vented at a rate not to exceed 3.0 pounds per hour. The Pallet Reefer must conform with the drawings, design data, and qualification test results submitted with the application on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA). In addition:

- a. The DOT Specification 3AL cylinders must be in compliance with all applicable requirements including requalification contained in 49 CFR Parts 171 - 180.
- b. Prior to charging the DOT Specification 3AL cylinders, the rupture disks must be inspected per § 173.34(d).
- c. The pallet reefers may not be stacked inside the motor vehicle.
- d. When the pallet reefer it is used to transport hazardous materials it is considered an "overpack" and subject to the requirements of § 173.25.

8. SPECIAL PROVISIONS.

- a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this exemption for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this exemption.
- b. A person who is not a holder of this exemption, but receives a package covered by this exemption, may reoffer it for transportation provided no modification or change is made to the package or its contents and it is offered for transportation in conformance with this exemption and the HMR.
- c. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

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d. Each completed packaging unit manufactured under the authority of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Exemptions and Approvals for a specific manufacturing facility.

e. A current copy of this exemption must be maintained at each facility where the package is manufactured under this exemption. It must be made available to a DOT representative upon request.

f. The outside of each package must be plainly and durably marked "DOT-E 10911".

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo only aircraft.

10. MODAL REQUIREMENTS:

A current copy of this exemption must be carried aboard each cargo aircraft and motor vehicle used to transport packages covered by this exemption. The shipper must furnish a current copy of this exemption to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8 who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

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12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, SW, Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

PO: sln